

Court No. - 40

Case :- WRIT - C No. - 10083 of 2023

Petitioner :- Vinod Porwal

Respondent :- State Of Uttar Pradesh And 2 Others

Counsel for Petitioner :- Gaurav Tripathi, Subodh Yadav

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

Heard Sri Gaurav Tripathi, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Respondent No. 2 and Sri Bharat Pratap Singh, learned Additional Chief Standing Counsel.

The present Writ Petition is preferred by the petitioner seeking direction in the nature of mandamus commanding the respondents to give fresh electricity connection to the petitioner by accepting indemnity bond applied through his online login I.D. No. PCL4821481.

Learned counsel for the petitioner has relied upon the judgement passed by coordinate Bench of this Court on 26.05.2014 in ***Writ C No. 28295 of 2014 (Seema Mansoor Vs. U.P. Power Corporation and 3 Others)*** and prayed that he may also be granted relief in terms of the aforesaid order dated 26.05.2014.

Sri Baleshwar Chaturvedi, learned counsel for the respondent corporation submits that even though First Information Report was lodged against the petitioner for theft which is compoundable under Section 152 of the Electricity Act and further Section 126 of Electricity Act deals with assessment. He submits that in case petitioner moves an appropriate fresh application as per Clause 4.4 of Uttar Pradesh Electricity Supply Code, 2005 for new connection before Competent Authority, then definitely, the claim of the petitioner for fresh Electricity connection shall be considered in accordance with law expeditiously.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the issue and with the consent, the writ petition stands ***disposed of*** with observation that in case the petitioner moves an appropriate application ventilating his grievance in terms of Clause 4.4 of Uttar Pradesh Electricity Supply Code, 2005 within two weeks, we direct that the same will

be considered and appropriate order will be passed by the respondent no.3-Executive Engineer in accordance with law and in light of the aforesaid judgement dated 26.05.2014 passed by coordinate Bench of this Court in further three weeks.

Order Date :- 28.3.2023

A. Mandhani